Safeguarding Without a Baseline

A Crosswalk from the IASC Six Core Principles to United States Domestic Legal and Regulatory Anchors

Module 1 of the U.S. Nonprofit Safeguarding Crosswalk Project

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Scope note. This is a comparative policy analysis of publicly available legal and regulatory instruments. It is not legal advice, and it does not state the law of any jurisdiction for the purpose of guiding conduct. Organizations should consult counsel licensed in their state. The author is not admitted to practice in the United States.

Abstract

The international humanitarian sector operates under a codified protection-from-sexual-exploitation-and-abuse (PSEA) framework whose foundational text is the Inter-Agency Standing Committee's Six Core Principles Relating to Sexual Exploitation and Abuse, first adopted in 2002 and revised in September 2019, which restate the standards promulgated in United Nations Secretary-General's Bulletin ST/SGB/2003/13. No equivalent framework governs the United States domestic nonprofit sector. That much is widely asserted. What has not previously been established is *which specific obligations* within the international framework do and do not have United States analogues, *for whom*, and *in what form*.

This module decomposes the Six Core Principles into thirteen discrete obligation elements and maps each to its closest United States legal or regulatory anchor. Each element is coded for anchor strength, population covered, population not covered, and gap type, using a taxonomy developed for this purpose (eight values, including a personnel-status code, G7).

The central finding is not that the United States lacks safeguarding law. It is that United States safeguarding obligations are fragmented across sectors and Code titles, conditioned on specific federal funding or program participation, narrow in the populations they protect, directed at individuals rather than organizations, reactive rather than operationalized, and never integrated into a whole-of-organization system. Of thirteen obligation elements, none is anchored by a requirement of general application that both reaches the nonprofit sector and protects program participants. Eleven exhibit an operationalization gap. Two have no United States anchor identified within the scope of this review.

Two structural observations emerge. First, the United States has already built a near-complete operational analogue to the international framework — at 42 C.F.R. Part 483 — and applied it to exactly one sub-sector: long-term-care facilities certified under Medicare and Medicaid. Second, the most powerful general-application driver of preventive safeguarding systems in United States law is the *Faragher*/*Ellerth* affirmative defense, which is an employer's shield against its own liability to its employees rather than a duty owed to the people an organization serves.

A third structural observation follows. The international framework states every consequence in the vocabulary of employment, while the domestic sector's front line is largely unpaid and United States law allocates protective and procedural duties by employment status rather than by function; the mismatch is analyzed at §7.5 and provisionally coded as a personnel-status gap (G7).

Keywords: safeguarding; PSEA; PSEAH; nonprofit governance; sexual exploitation and abuse; crosswalk; regulatory gap analysis; vulnerable populations; United States nonprofit sector

1. Purpose and research question

The proposition that the United States domestic nonprofit sector operates without a safeguarding baseline is, in the practitioner literature, asserted rather than demonstrated. The Nonprofit Risk Management Center (NRMC) states that "there is no single framework, checklist or standard for youth protection to which all organizations must be held." The Centers for Disease Control and Prevention identifies youth-serving organizations as critical partners in preventing child sexual abuse and publishes guidance on policies and procedures, but that guidance is advisory. Neither source specifies which obligations are missing, from whom, or why.

This module answers a narrower and more tractable question:

For each discrete obligation contained in the IASC Six Core Principles, what is the closest United States legal or regulatory anchor; which populations does that anchor cover and fail to cover; and what precisely is the operational gap between the international obligation and the domestic instrument?

The output is intended to serve three audiences: nonprofit practitioners who need to know what their obligations actually are, funders and policymakers considering whether to impose safeguarding conditions, and researchers who need a citable baseline against which to measure sector practice.

2. Why a crosswalk

A crosswalk is an established analytic genre. The National Institute of Standards and Technology maintains a public repository of crosswalks mapping its frameworks to laws, regulations, and other standards; the Department of Health and Human Services and private compliance bodies publish crosswalks between the HIPAA Security Rule and NIST and ISO control sets. The genre's value is that it converts an unfalsifiable claim ("the sector is unregulated") into a set of checkable propositions, each of which can be verified or refuted against a primary source.

That property is the reason this module is structured as a crosswalk rather than as an essay. Every row can be disproved. Where a reader identifies an anchor this module missed, the correction improves the map rather than destroying the thesis, because the thesis concerns the *shape* of coverage, not its existence.

3. Method

3.1 Source selection

Two international instruments were used as the source of obligations:

- **IASC Six Core Principles Relating to Sexual Exploitation and Abuse** (Inter-Agency Standing Committee, revised September 2019). Selected because it is the most widely adopted cross-organizational statement of PSEA obligations, is incorporated by reference into the codes of conduct of United Nations agencies and their implementing partners, and is short enough to decompose exhaustively.
- **United Nations Secretary-General's Bulletin ST/SGB/2003/13, "Special measures for protection from sexual exploitation and sexual abuse"** (9 October 2003; entered into force 15 October 2003). Selected because the Six Core Principles restate its section 3.2 standards, and because its sections 4 and 6 supply the organizational-systems obligations that the Six Core Principles compress into Core Principle 6.

Where the two instruments diverge, both are recorded. One divergence is material and is discussed at element SCP-4.1.

3.2 Unit of analysis

The unit of analysis is the obligation element, not the principle. A single principle frequently contains more than one distinct duty. Core Principle 2, for example, contains both a substantive prohibition (sexual activity with persons under 18, irrespective of local age of consent) and an evidentiary rule (mistaken belief as to age is not a defence). These have different United States analogues and different gap profiles, and collapsing them would conceal the difference.

Decomposition yielded thirteen obligation elements across the six principles. The full decomposition is at Appendix A.

3.3 Identification of United States anchors

For each element, the analysis sought the closest United States instrument imposing a substantively comparable obligation. Sources searched: the United States Code; the Code of Federal Regulations; federal agency guidance and enforcement guidance; reported federal case law where a doctrine is judge-made; state statutes where the obligation is a matter of state criminal or licensing law; and the Form 990 governance disclosure schedule as the only near-universal federal instrument touching nonprofit internal policy.

"Closest anchor" means the instrument most nearly on point, not an instrument that satisfies the obligation. An anchor is recorded even where it covers a small fraction of the relevant population, because the *scope of the anchor* is the analytic object.

3.4 Inclusion and exclusion rules

- An anchor is included only if it imposes a duty, creates a disqualification, or is an express federal disclosure question. Voluntary standards, accreditation schemes, insurer requirements, and model policies are excluded from the anchor column and discussed separately at §8.
- Where no instrument was located, the cell reads **"No anchor identified within the scope of this review."** It does not read "no law exists." Absence of a hit in this review is not proof of absence in law; it is a bounded negative finding with a stated search scope.
- State law is treated as anchoring where an obligation is substantially uniform across states, and as variance-limited where it is not. Individual state statutes are cited illustratively, not exhaustively. A fifty-state appendix is out of scope for Module 1 and is proposed as Module 5.

3.5 Limitations of method

This is a desk review of published instruments by a single analyst. It does not measure enforcement intensity, does not survey organizational practice, and does not include tribal law, territorial law, or municipal ordinance. See §9.

4. Coding schema

Each obligation element is coded on eight fields.

Field	Values / content
1. Element ID	SCP-{principle}.{element}
2. International obligation	Verbatim text, with citation to IASC 2019 and the corresponding ST/SGB/2003/13 provision
3. Obligation type	Prohibition · Affirmative duty · Systems duty · Reporting duty · Employment-consequence duty · Evidentiary rule
4. Closest U.S. anchor	Exact citation
5. Anchor strength	See below
6. Population covered	The class the anchor actually protects or binds
7. Population NOT covered	The class the international obligation reaches that the anchor does not
8. Gap code(s)	See §5, plus a one-sentence operational gap statement

Anchor strength scale:

Code	Meaning
B	Binding requirement — a statute or regulation directly imposing the duty on the organization
GC	Grant condition — binds only recipients of an identified funding stream or program participants
JM	Judge-made / doctrinal — created by case law rather than express statutory text
DI	Disclosure-only indicator — the organization must report whether it has the policy, but is not required to have one
G	Guidance only — recommended by a federal body, not enforceable
N	No anchor identified within the scope of this review

5. Gap taxonomy

The taxonomy below is the analytic contribution of this module and is designed to be applied by other researchers to other standard families. Full decision rules are in the companion file 03_Gap_Taxonomy.md. The taxonomy has eight values, including the personnel-status code G7 defined below.

Code	Name	Decision rule
A	**Anchored**	A genuine United States equivalent exists for a defined population. Applied wherever true, so that the map is a gap map and not a claim of absence.
G1	**Conditional coverage**	The obligation binds only entities that opt into a funding stream, contract, or program. Withdraw the funding and the obligation disappears.
G2	**Population gap**	The anchor protects a class other than the program participants or beneficiaries whom safeguarding exists to protect.
G3	**Sub-sector gap**	Coverage is confined to a licensed, certified, or chartered vertical.
G4	**Posture gap**	The duty triggers only after suspected harm has occurred, rather than requiring a preventive system in advance.
G5	**Operationalization gap**	The obligation may exist in principle, but no instrument specifies the organizational system that discharges it — no required policy content, no training standard, no reporting-channel specification, no monitoring cycle.
G6	**Actor gap**	The duty binds an individual rather than the organization, so there is no institutional accountability and no disqualification that travels with the person.
G7	**Personnel-status gap**	The anchor's obligation, protection, or consequence attaches to employment (or licensure) status rather than to the function performed toward the beneficiary, so that volunteers, board members, interns, or contractors performing the identical beneficiary-facing role fall outside it.

G7 is distinct from G2, G3, and G6. G2 concerns which class of persons the anchor protects — beneficiaries or some other class. G3 concerns which vertical the anchor reaches — a licensed or certified sub-sector or nonprofits as a class. G6 concerns whether the duty-bearer is the individual or the organization. G7 concerns which members of the organization's own workforce are bound or protected: whether the anchor sorts by employment status or by beneficiary-facing function. An element may carry G7 alongside any of the others; the combination is expected, because most status-based anchors are also sub-sector or population limited.

A single element may carry an **A** code and several gap codes simultaneously. That combination is the normal case and is the point of the exercise.

6. The crosswalk

Core Principle 1

"Sexual exploitation and abuse by humanitarian workers constitute acts of gross misconduct and are therefore grounds for termination of employment." — IASC Six Core Principles (2019), Principle 1; cf. ST/SGB/2003/13 § 3.2(a) ("Sexual exploitation and sexual abuse constitute acts of serious misconduct and are therefore grounds for disciplinary measures, including summary dismissal").

SCP-1.1 — Classification of sexual exploitation and abuse as gross misconduct within the organization's disciplinary framework

Obligation type: Employment-consequence duty

Closest U.S. anchor: 42 C.F.R. § 483.12(b)(1) — a facility must "develop and implement written policies and procedures that … [p]rohibit and prevent abuse, neglect, and exploitation of residents." **Strength: B.**

Population covered: Residents of long-term-care facilities certified to participate as a Skilled Nursing Facility under Medicare or as a nursing facility under Medicaid.

Population NOT covered: Program participants of every other category of nonprofit organization — youth programs, shelters, resettlement agencies, disability services, food assistance, legal aid, mentoring.

Gap codes: A · G3 · G5

Operational gap: Outside CMS-certified long-term care, no instrument requires a nonprofit organization to classify sexual exploitation or abuse as terminable misconduct; because employment in most states is at will, termination is *permitted* but never *required*, and the classification is therefore left entirely to organizational discretion.

SCP-1.2 — Termination and disqualification as a defined consequence, recorded so as to follow the individual

Obligation type: Employment-consequence duty

Closest U.S. anchor: 42 C.F.R. § 483.12(a)(3) — a facility must not employ or otherwise engage individuals who have been found guilty of abuse, neglect, exploitation, misappropriation of property, or mistreatment by a court of law, who have had a finding entered into the State nurse aide registry concerning such conduct, or who have a disciplinary action in effect against a professional license by reason of such conduct; and § 483.12(a)(4) — the facility must "[r]eport to the State nurse aide registry or licensing authorities any knowledge it has of actions by a court of law against an employee, which would indicate unfitness for service." The nearest grant-conditioned analogue is the National Service Criminal History Check, 45 C.F.R. § 2540.204, under which grantees and subgrantees must obtain, for each individual in a covered position, "[a] nationwide check of the National Sex Offender Public website through NSOPW.gov," a check of the State criminal history record repository for the individual's State of residence and State of service, and "[a] fingerprint-based check of the FBI criminal history record database." **Strength: B (long-term care); GC (national service).**

Population covered: Certified long-term-care facilities and the registries serving them; nurse aides and licensed professionals; individuals in positions covered by an AmeriCorps grant or subgrant.

Population NOT covered: Nonprofit staff and volunteers generally. No cross-sector disqualification record exists.

Gap codes: A · G1 · G3 · G6

Operational gap: An individual terminated for sexual misconduct by one nonprofit organization is not, by virtue of that termination, disqualified from an equivalent role at another; outside licensed care and the nurse aide registry system, the United States maintains no portable disqualification mechanism for safeguarding-relevant conduct, so the consequence attaches to the job rather than to the person.

Analytic note. The absence of a portable disqualification is most acute for volunteers. A volunteer dismissed for misconduct leaves no employment record, triggers no licensure consequence, and appears on no registry that travels with the person; the consequence attaches neither to the job nor to the person, because there was no job. See §7.5.

Core Principle 2

"Sexual activity with children (persons under the age of 18) is prohibited regardless of the age of majority or age of consent locally. Mistaken belief regarding the age of a child is not a defence." — IASC Six Core Principles (2019), Principle 2; ST/SGB/2003/13 § 3.2(b).

SCP-2.1 — Absolute prohibition on sexual activity with persons under 18, irrespective of the local age of majority or consent

Obligation type: Prohibition

Closest U.S. anchor: State statutory-rape law, supplemented by position-of-trust statutes. The age of consent is 16 in the largest group of states, 17 in a smaller group, and 18 in a minority. The precise state-by-state count, together with full position-of-trust statute mapping, is reserved for Module 5 of this series, which will derive each figure from primary state statutes rather than secondary compilation. Position-of-trust statutes raise the effective age to 18 where the adult holds supervisory or welfare responsibility for the minor; see, e.g., Colo. Rev. Stat. § 18-3-405.3. Federal criminal law reaches this conduct only within limited jurisdictional bases (e.g., 18 U.S.C. § 2243). **Strength: B (state), jurisdictionally limited.**

Population covered: Minors, at the age threshold their state sets; minors in the defined trust relationships their state's position-of-trust statute enumerates.

Population NOT covered: 16- and 17-year-old program participants in states setting the age of consent below 18, where no applicable position-of-trust statute reaches the staff member's or volunteer's role.

Gap codes: A · G1 · G4 · G5 · G6

Operational gap: The international standard is a single absolute organizational conduct rule; the United States analogue is fifty criminal codes with three different age thresholds and role-dependent trust provisions, so whether a nonprofit's adult volunteer may lawfully have sexual contact with a 16-year-old participant turns on the state and on how that state defines a position of trust — and no instrument requires the organization to adopt the higher standard internally.

Analytic note. Position-of-trust statutes are the closest structural analogue in United States law to the PSEAH concept of a power differential arising from the service relationship. Their coverage of nonprofit roles is the single most important open question in this module and is flagged as a priority for Module 5.

SCP-2.2 — Mistaken belief as to the age of a child is not a defence

Obligation type: Evidentiary rule

Closest U.S. anchor: Strict liability is the majority rule in United States statutory-rape law: proof of the act and of the victim's age below the statutory threshold suffices, and the defendant's knowledge of age is not an element. A substantial minority of states recognize some form of honest and reasonable mistake-of-age defence, established by statute in some states and by case law in others — see, e.g., *People v. Hernandez*, 61 Cal. 2d 529 (1964) (California, case law). A full state-by-state count is reserved for Module 5. **Strength: B (state), non-uniform.**

Population covered: Minors, in the majority of states.

Population NOT covered: Minors in states recognizing the defence; and in all states, the element is absent as an *organizational* conduct rule.

Gap codes: A · G1 · G5 · G6

Operational gap: This is the most substantially anchored of the thirteen elements — the majority United States rule matches the international standard — but the match is in criminal law binding individuals, and no instrument requires a nonprofit organization to adopt the no-mistake-of-age rule as an internal disciplinary standard, so an organization may lawfully treat a staff member's claimed belief about a participant's age as exculpatory in its own proceedings even where the state would not.

Core Principle 3

"Exchange of money, employment, goods, or services for sex, including sexual favours or other forms of humiliating, degrading or exploitative behaviour is prohibited. This includes exchange of assistance that is due to beneficiaries." — IASC Six Core Principles (2019), Principle 3; ST/SGB/2003/13 § 3.2(c).

SCP-3.1 — Prohibition on the exchange of money, employment, goods, or services for sex

Obligation type: Prohibition

Closest U.S. anchor: 18 U.S.C. § 1591 (sex trafficking), which requires either that force, threats of force, fraud, or coercion be used to cause a commercial sex act, or that the person be under 18; state commercial-sex statutes; and Title VII quid pro quo doctrine under 42 U.S.C. § 2000e *et seq.*, which reaches the exchange of employment benefits for sexual submission but only within the employment relationship. **Strength: B / JM, threshold-limited.**

State Title VII's scope precisely. The statute prohibits discrimination "because of … sex." It contains no express reference to sexual harassment; that coverage is judge-made, established in *Meritor Savings Bank v. Vinson*, 477 U.S. 57 (1986), and elaborated in *Harris v. Forklift Systems, Inc.*, 510 U.S. 17 (1993). Any crosswalk that presents Title VII as an express statutory harassment prohibition overstates it and is correctable on that ground.

Population covered: Trafficking victims meeting the § 1591 elements; minors; **employees** of employers with fifteen or more employees (42 U.S.C. § 2000e(b)).

Population NOT covered: Adult program participants who are not employees, in conduct below the § 1591 force-fraud-coercion threshold.

Gap codes: A · G2 · G5 · G6

Operational gap: Where an adult beneficiary is not an employee and the conduct does not meet the trafficking threshold, the transactional exchange the international standard prohibits outright falls into a space addressed by no general United States prohibition, because Title VII's protection attaches to the employment relationship and § 1591 requires coercion the international standard does not require.

SCP-3.2 — Prohibition on the exchange of assistance that is already due to the beneficiary

Obligation type: Prohibition

Closest U.S. anchor: No anchor identified within the scope of this review. The nearest adjacent provision is the definition of coercion at 18 U.S.C. § 1591(e)(2), which includes "any scheme, plan, or pattern intended to cause a person to believe that failure to perform an act would result in serious harm to or physical restraint against that person," and which may reach the withholding of essential assistance on certain facts. It does not reach the conduct as a category. **Strength: N.**

Population covered: None as a category.

Population NOT covered: All recipients of nonprofit services and entitlements.

Gap codes: G2 · G5 · G6

Operational gap: The international framework's most distinctive prohibition **—** that a beneficiary's own entitlement may never be the medium of exchange, because a person cannot meaningfully consent to paying for what is already theirs — has no general-application United States equivalent; the conduct is actionable only where independent elements of trafficking, extortion, or coercion happen to be present.

This is the sharpest gap in the module. It is also the element that most directly explains why importing United States employment-law compliance does not produce a safeguarding system: employment law regulates the workplace bargain, whereas this obligation regulates the aid relationship, and the United States has no body of law addressed to the aid relationship as such.

Core Principle 4

"Any sexual relationship between those providing humanitarian assistance and protection and a person benefitting from such humanitarian assistance and protection that involves improper use of rank or position is prohibited. Such relationships undermine the credibility and integrity of humanitarian aid work." — IASC Six Core Principles (2019), Principle 4; cf. ST/SGB/2003/13 § 3.2(d), which provides that such relationships "are strongly discouraged."

SCP-4.1 — Prohibition on provider–beneficiary sexual relationships involving improper use of rank or position

Obligation type: Prohibition

Closest U.S. anchor: Professional-licensure ethics and discipline for licensed practitioners, enforced by state licensing boards and codified in professional codes (see, e.g., National Association of Social Workers, *Code of Ethics*, Standard 1.09, prohibiting sexual activities with current clients); state statutes criminalizing sexual contact between care providers and vulnerable adults; and position-of-trust statutes for minors. **Strength: B, confined to licensed roles.**

Population covered: Clients of licensed practitioners — social workers, psychologists, counselors, physicians, nurses; vulnerable adults in defined provider relationships; minors in enumerated trust relationships.

Population NOT covered: Beneficiaries served by unlicensed personnel — case managers, intake workers, food-bank and pantry coordinators, volunteer mentors, resettlement caseworkers, shelter staff, program assistants, drivers, outreach volunteers.

Gap codes: A · G3 · G5 · G6

Operational gap: The United States duty attaches to a professional license rather than to the service relationship, so the identical power differential is regulated when the provider is a licensed clinician and unregulated when the provider is an unlicensed caseworker in the same organization serving the same person.

Instrument divergence worth recording. The 2019 Six Core Principles state that such relationships are "prohibited" where they involve improper use of rank or position. ST/SGB/2003/13 § 3.2(d) states that they "are strongly discouraged," and § 4.5 permits the

Head of Department, Office or Mission to exercise discretion where beneficiaries are over 18 and the circumstances justify an exception. The international framework has therefore itself hardened over time on this point. Any domestic baseline should adopt the later, stricter formulation and say so expressly.

Core Principle 5

“Where a humanitarian worker develops concerns or suspicions regarding sexual abuse or exploitation by a fellow worker, whether in the same agency or not, he or she must report such concerns via established agency reporting mechanisms.” — IASC Six Core Principles (2019), Principle 5; ST/SGB/2003/13 § 3.2(e); cf. § 4.3 (duty to appoint a focal point at a sufficiently high level to receive reports, and to inform staff and the local population of its existence and how to contact it).

SCP-5.1 — Duty to report concerns or suspicions concerning a fellow worker

Obligation type: Reporting duty

Closest U.S. anchor: State mandatory-reporter statutes for child abuse and for abuse of vulnerable adults; 42 U.S.C. § 1320b-25(b), which requires each covered individual — defined to include owners, operators, employees, managers, agents, and contractors of a long-term-care facility receiving at least $10,000 in federal funds in the preceding year — to report a reasonable suspicion of a crime against a resident, “immediately, but not later than 2 hours” where the events cause serious bodily injury and not later than 24 hours otherwise, with civil money penalties up to $200,000 and up to $300,000 where the failure exacerbates harm; and 34 U.S.C. § 20341, which requires a covered individual who learns of facts giving reason to suspect child abuse to report “as soon as possible,” defined as within 24 hours. **Strength: B / GC.**

Population covered: Children and vulnerable adults, through reporters in the professional categories each state enumerates; residents of federally funded long-term-care facilities; minors and amateur athletes within the amateur-athletics structures reached by 34 U.S.C. § 20341(c)(9) — an adult authorized by a national governing body, a member of a national governing body, or an amateur sports organization participating in interstate or international competition, or an employee or representative of the U.S. Center for SafeSport.

Population NOT covered: Nonprofit personnel outside enumerated reporter categories; adult beneficiaries who are not “vulnerable adults” as their state defines the term; conduct constituting exploitation but not a reportable crime or reportable abuse. The athletics duty is bounded by the jurisdiction of the body that enforces it: under 36 U.S.C. § 220541(a)(1)(B), the U.S. Center for SafeSport exercises jurisdiction “over the corporation and each national governing body with regard to safeguarding amateur athletes against abuse, including emotional, physical, and sexual abuse, in sports” — so recreational, community, and non-Olympic-movement youth programs sit outside it entirely.

Gap codes: A · G1 · G3 · G4

Operational gap: United States reporting duties are triggered by suspected harm to a beneficiary and run outward to a state agency or law enforcement, whereas the international duty is triggered by suspected *misconduct by a colleague* and runs inward to an organizational mechanism — so the conduct the international standard is designed to surface early, before it becomes reportable abuse, generates no United States duty at all.

SCP-5.2 — The duty extends across organizations, "whether in the same agency or not"

Obligation type: Reporting duty

Closest U.S. anchor: No anchor identified within the scope of this review. Mandatory-reporter duties run to a designated state agency. Section 1320b-25(b) runs to the Secretary and to law enforcement. Neither creates a duty or a pathway running to another service organization. **Strength: N.**

Population covered: None.

Population NOT covered: Beneficiaries of any organization other than the reporter's own.

Gap codes: G5 · G6

Operational gap: No United States instrument creates either a duty to report suspected safeguarding misconduct occurring at a partner, subgrantee, or referral organization, or a lawful information-sharing pathway for doing so — which means that in a referral network of the kind nonprofits routinely operate, a concern about a colleague at a partner agency has no defined destination.

SCP-5.3 — Existence of an established organizational reporting mechanism

Obligation type: Systems duty

Closest U.S. anchor: 42 C.F.R. § 483.10(j) — the resident has the right to voice grievances "without discrimination or reprisal and without fear of discrimination or reprisal"; the facility must make prompt efforts to resolve them; and the facility must designate a Grievance Official responsible for receiving and tracking grievances, leading investigations, maintaining confidentiality, and issuing written decisions, with the grievance policy required to state the right to file orally, in writing, or anonymously, the grievance official's name, address, and telephone number, the expected review timeframe, the right to a written decision, and contact information for independent entities including the State agency and the Ombudsman, and with records retained at least three years. Also 42 C.F.R. § 483.12(b)(5) and 42 U.S.C. § 1320b-25(a) (notification of reporting obligations and of whistleblower protections). Employee-facing complaint procedures are driven doctrinally by *Faragher*/*Ellerth* (see SCP-6.1). IRS Form 990, Part VI, Section B, Line 13 asks whether the organization has a written whistleblower policy — a disclosure question, not a requirement. On the confidentiality dimension that ST/SGB/2003/13 § 4.3 attaches to the focal-point mechanism, the closest domestic anchor is 34 U.S.C. § 12291(b)(2)(A), under which "grantees and subgrantees under this subchapter shall protect the confidentiality and privacy of persons receiving services" — a grant condition binding only recipients of the relevant victim-services funding, and a data-handling rule rather than a reporting-channel specification. **Strength: B (long-term care); GC (victim services); DI (Form 990); JM (employee-facing).**

Population covered: Residents of certified long-term-care facilities; employees, indirectly and optionally.

Population NOT covered: Program participants of nonprofits generally.

Gap codes: A · G1 · G2 · G3 · G5

Operational gap: 42 C.F.R. § 483.10(j) is a close and well-specified analogue to the focal-point mechanism ST/SGB/2003/13 § 4.3 requires — anonymous filing, a named official, defined timeframes, written decisions, external escalation, record retention — and it reaches certified long-term-care facilities and no one else; for every other nonprofit, the only near-universal federal touchpoint is a Form 990 question asking whether a whistleblower policy exists, which the Internal Revenue Code does not require the organization to answer in the affirmative and which is directed at employees rather than beneficiaries.

This row carries the module's most useful policy finding. The United States has already designed the mechanism. It exists, it is detailed, it is enforceable, and it was written once, for one sub-sector. The barrier to a domestic baseline is not design capacity.

Core Principle 6

"Humanitarian workers are obliged to create and maintain an environment which prevents sexual exploitation and abuse and promotes the implementation of their code of conduct. Managers at all levels have particular responsibilities to support and develop systems which maintain this environment." — IASC Six Core Principles (2019), Principle 6; ST/SGB/2003/13 § 3.2(f); cf. § 4.1 (Head of Department, Office or Mission responsible for creating and maintaining a preventive environment) and § 6.1 (obligation to inform non-UN partners of the section 3 standards and to obtain a written undertaking that they accept them).

SCP-6.1 — Affirmative duty to create and maintain an environment that prevents sexual exploitation and abuse

Obligation type: Systems duty

Closest U.S. anchor: 42 C.F.R. § 483.12(b)(1)–(2) — written policies and procedures that prohibit and prevent abuse, neglect, and exploitation, and that establish procedures for investigating allegations. For the general-application case, the *Faragher*/*Ellerth* affirmative defense: where harassment did not result in a tangible employment action, an employer may defend by showing that it exercised reasonable care to prevent and correct the harassment and that the employee unreasonably failed to use the complaint procedure. *Faragher v. City of Boca Raton*, 524 U.S. 775 (1998); *Burlington Industries, Inc. v. Ellerth*, 524 U.S. 742 (1998); see EEOC, *Enforcement Guidance on Harassment in the Workplace* (2024), which sets out the policy, complaint-process, and training expectations the first prong entails.

Two further general-application instruments require treatment here, because each is the counterexample most likely to be raised against this module's central finding, and each fails a different structural test. First, common-law tort liability for negligent hiring, supervision, and retention — under which an organization may be liable in damages for failing to exercise reasonable care in selecting or overseeing a person who then harms a third party, see Restatement (Third) of Agency § 7.05 (2006) — does apply to nonprofits generally and does run to beneficiaries; it is the doctrinal theory underlying the largest abuse settlements in the sector's history. But it is judge-made, it operates only after harm through the award of damages, and it prescribes no standard of preventive conduct in advance: no policy content, no training requirement, no reporting channel, no screening protocol. An organization learns what "reasonable care" required only from the verdict. Second, a small number of states have begun enacting organization-level preventive duties for defined sub-sectors — most prominently Cal. Bus. & Prof. Code § 18975 (enacted 2021 by AB 506, amended 2022 by AB 2669), which requires youth service organizations to adopt child abuse prevention policies, complete child-abuse identification and reporting training, and conduct fingerprint background checks for administrators, employees, and regular volunteers, with insurers authorized to verify compliance. These statutes are organization-binding and preventive, but each is confined to a single state and, within it, to youth-serving organizations — an emerging pattern that confirms, rather than closes, the fragmentation this module documents. **Strength: B (long-term care); JM (general).**

Population covered: Residents of certified long-term-care facilities; employees of employers with fifteen or more employees.

Population NOT covered: Program participants and beneficiaries; the workforces of organizations below the fifteen-employee threshold — which, given that the National Council of Nonprofits reports 88% of charitable nonprofits operating on annual budgets under $500,000, is a large share of the sector.

Gap codes: A · G2 · G3 · G4 · G5

Operational gap: Outside certified long-term care, the strongest engine driving United States organizations to build preventive safeguarding systems is an affirmative defense to their own liability to their own employees — a litigation shield that an organization may rationally decline to build if it prefers to bear the risk, that is measured by adequacy in defending a claim rather than by adequacy in protecting a person, and that on its own terms does not extend to the people the organization serves. The other general-application engine — tort liability for negligent hiring, supervision, and retention — does run to beneficiaries, but only in the form of damages after harm, and it specifies no preventive standard in advance: it prices the gap without filling it.

Restated for policy audiences: the most powerful preventive-systems incentive in United States law is not a protective duty. It is a defense. Everything that follows from that — the emphasis on documented policy over implemented practice, on employee complaint channels over beneficiary channels, on defensibility over efficacy — is a predictable consequence of the incentive's structure rather than a failure of organizational goodwill.

SCP-6.2 — Duty to promote the implementation of a code of conduct

Obligation type: Systems duty

Closest U.S. anchor: 42 C.F.R. § 483.95, requiring a facility to "develop, implement, and maintain an effective training program for all new and existing staff; individuals providing services under a contractual arrangement; and volunteers, consistent with their expected roles," and § 483.95(c), requiring education on activities that constitute abuse, neglect, exploitation, and misappropriation of resident property, on procedures for reporting such incidents, and on dementia management and resident abuse prevention. IRS Form 990, Part VI, Section B, Line 12a asks whether the organization has a written conflict-of-interest policy. **Strength: B (long-term care); DI (Form 990).**

Population covered: Staff, contractors, and volunteers of certified long-term-care facilities.

Population NOT covered: Staff and volunteers of nonprofits generally.

Gap codes: A · G3 · G5 · G6

Coding note. A is applied here on a narrow basis. Section 483.95(c) anchors the *promotion* mechanism the element requires — mandated training on what constitutes abuse, neglect, and exploitation and on how to report it, extended expressly to volunteers — but it does not require the underlying behavioural code to exist. The anchor therefore reaches half the obligation, for one sub-sector.

Operational gap: No United States instrument of general application requires a nonprofit to maintain a *behavioural* code of conduct governing boundaries with the people it serves; the Form 990 governance block asks only about financial conflict of interest, whistleblowing, and document retention, and contains no question about child or vulnerable-adult safeguarding at all — so the one near-universal federal instrument touching nonprofit internal policy is silent on the subject.

The silence is itself a finding. Form 990 Part VI is the closest thing the United States has to a national nonprofit governance census. That it contains no safeguarding question means the federal government does not currently know, and has no mechanism to learn, how many of the organizations serving vulnerable Americans have a safeguarding policy.

SCP-6.3 — Manager-level responsibility to support and develop the systems that maintain a preventive environment

Obligation type: Systems duty

Closest U.S. anchor: 42 C.F.R. § 483.12(b)(3)–(4) (staff training requirements; coordination with the facility's quality assessment and assurance program); 42 C.F.R. § 483.95 (facility-level duty to develop, implement, and maintain the training program); 42 U.S.C. § 1320b-25(a) (annual duty on the owner or operator to determine whether the facility met the federal funding threshold and to notify each covered individual of their reporting obligations). Compare ST/SGB/2003/13 § 4.1–4.3 and § 6.1. **Strength: B, sub-sector.**

Population covered: Certified long-term-care facilities and their leadership.

Population NOT covered: Nonprofit boards and executive leadership generally.

Gap codes: A · G3 · G5

Operational gap: No United States instrument of general application places a safeguarding-systems duty on nonprofit boards or executives; the applicable state-law fiduciary duty of care is generic, is owed to the corporation rather than to beneficiaries, and specifies no safeguarding content — so the level of the organization at which the international framework locates primary responsibility is, in the domestic sector, the level at which no responsibility is defined.

Note on ST/SGB § 6.1. The Bulletin requires United Nations officials entering cooperative arrangements with non-UN entities to inform them of the section 3 standards and to obtain a written undertaking that they accept those standards, with failure to take preventive measures constituting grounds for termination of the arrangement. The nearest domestic analogue is subrecipient monitoring under 2 C.F.R. § 200.332(e), which requires a pass-through entity to "[m]onitor the activities of a subrecipient as necessary to ensure that the subrecipient complies with Federal statutes, regulations, and the terms and conditions of the subaward" — a fiscal and grant-compliance obligation containing no abuse-prevention content whatsoever (**Strength: GC; codes G1 · G5**). The flow-down architecture exists in United States grant law. Safeguarding has simply never been placed in it.

7. Findings

7.1 Distribution across the thirteen obligation elements

Measure	Count	Elements
Anchored by a U.S. requirement of **general application** that both reaches the nonprofit sector and protects program participants	**0 of 13**	—
Carrying at least one **A** code (a genuine anchor for some defined population)	11 of 13	all except SCP-3.2, SCP-5.2
G5 operationalization gap	11 of 13	all except SCP-1.2, SCP-5.1
G1 or G3 — conditional or sub-sector coverage only	10 of 13	1.1, 1.2, 2.1, 2.2, 4.1, 5.1, 5.3, 6.1, 6.2, 6.3
G6 actor gap — duty binds an individual, not the organization	8 of 13	1.2, 2.1, 2.2, 3.1, 3.2, 4.1, 5.2, 6.2

Measure	Count	Elements
G2 population gap — anchor protects a class other than beneficiaries	4 of 13	3.1, 3.2, 5.3, 6.1
G4 posture gap — reactive rather than preventive	3 of 13	2.1, 5.1, 6.1
No anchor identified within the scope of this review	2 of 13	3.2, 5.2

A provisional personnel-status coding (G7) is reported at §7.5 and is excluded from this table pending independent recoding.

The single most important cell in that table is the first. Every other row shows partial coverage; the first row shows that no obligation in the international framework is discharged by a United States requirement that both applies to nonprofits as a class and protects the people they serve. That is a bounded, checkable, falsifiable proposition, and it is the precise sense in which the sector lacks a baseline. "Requirement" is used here in its ex ante sense: an instrument that specifies conduct or systems in advance of harm. Common-law tort liability — including negligent hiring, supervision, and retention, addressed at SCP-6.1 — is general in application and runs to beneficiaries, but it prescribes nothing in advance and is enforced only through damages after harm; it prices the gap rather than filling it, and so does not satisfy the first row.

7.2 The framework already exists, for one sub-sector

Read down the anchor column and one citation recurs: 42 C.F.R. Part 483. It supplies a written-policy requirement that expressly prohibits *and prevents* abuse, neglect, and exploitation (§ 483.12(b)(1)); investigation procedures (§ 483.12(b)(2)); an employment bar and a duty to report unfit personnel to a registry (§ 483.12(a)(3)–(4)); a named grievance official with anonymous filing, defined timeframes, written decisions, external escalation, and record retention (§ 483.10(j)); a training program covering staff, contractors, *and volunteers*, with mandated abuse-and-reporting content (§ 483.95, § 483.95(c)); incident-reporting timeframes with penalties (§ 483.12(c); 42 U.S.C. § 1320b-25); and integration with quality assurance (§ 483.12(b)(4)).

That is a whole-of-organization safeguarding system. It maps to the international framework more completely than any other body of United States law. It applies only to institutions certified to participate as a Skilled Nursing Facility under Medicare and as a nursing facility under Medicaid (42 C.F.R. § 483.1).

The design problem is therefore solved. The scope problem is not.

7.3 The general-application incentive is a defense, not a duty

For nonprofits outside the certified verticals, the strongest force producing safeguarding infrastructure is the *Faragher*/*Ellerth* affirmative defense. Its structure predicts the pathologies practitioners observe: policy documented rather than implemented, because the defense is proved with documents; complaint channels built for employees rather than beneficiaries, because the defense concerns employee claims; adequacy measured against litigation risk rather than against protective efficacy, because that is what the defense is for; and adoption concentrated among larger employers, because the fifteen-employee threshold at 42 U.S.C. § 2000e(b) excludes the rest and because litigation exposure scales with size.

This reframes the sector's safeguarding deficit. It is not primarily a failure of will among small nonprofits. It is the predictable output of an incentive structure in which the only general-application driver of preventive systems is an employer's defense against its own employees.

7.4 The aid relationship is unregulated as such

Elements SCP-3.2 and SCP-5.2 have no identified anchor, and SCP-3.1 and SCP-4.1 are anchored only outside the beneficiary relationship. The common feature is that the international framework regulates the **aid relationship** — the asymmetry between a person who controls access to assistance and a person who needs it — while United States law regulates the **employment relationship**, the **licensed professional relationship**, and the **certified institutional setting**. Where a service relationship is none of those three, the power differential that safeguarding exists to address is not a regulated relationship in United States law at all.

This is the analytically load-bearing finding of the module, because it explains why a nonprofit can be fully compliant with United States employment, tax, and grant law and still have no safeguarding system: compliance is available in every relationship except the one that matters most.

7.5 The framework assumes an employer; the sector runs on volunteers

Every consequence in the international framework is stated in the vocabulary of employment. Core Principle 1 provides that sexual exploitation and abuse "are therefore grounds for termination of employment"; ST/SGB/2003/13 § 3.2(a) provides that they "are therefore grounds for disciplinary measures, including summary dismissal." The vocabulary is not incidental. The Bulletin was written for staff subject to the United Nations Staff Regulations and Rules — § 2.1 applies it "to all staff of the United Nations" — and it reaches everyone else by a different route: § 6.1 requires officials entering cooperative arrangements with non-United Nations entities or individuals to obtain "a written undertaking from those entities or individuals that they accept these standards," and § 6.2 makes failure to take preventive measures grounds for terminating the arrangement. The standard binds staff directly and non-staff by contract. Later implementing-partner protocols and donor conditions extend the same logic, defining "personnel" broadly and flowing the obligation down by agreement.

The domestic sector to which the obligation must be adapted is not staffed the way the United Nations is. In the year to September 2023, more than 75.7 million people — 28.3 percent of Americans — formally volunteered through an organization. Nonprofit establishments employed 12.8 million people in 2022, 9.9 percent of private-sector employment. Independent Sector, drawing on Urban Institute data, reports that 43 percent of nonprofits are all-volunteer organizations. The people who represent nonprofits to beneficiaries are, in large part, not employees, and a framework whose only stated consequence is termination of employment speaks directly to a minority of the people who deliver assistance at the point of contact.

United States law compounds the mismatch, because it sorts protective and procedural doctrines by legal status rather than by function. Title VII, and with it the Faragher/Ellerth defense discussed at §7.3, attaches to employees; in most circuits a volunteer who receives no significant remuneration is not an "employee" at all (O'Connor v. Davis, 126 F.3d 112 (2d Cir. 1997); Haavistola v. Community Fire Co. of Rising Sun, 6 F.3d 211 (4th Cir. 1993); Juino v. Livingston Parish Fire District No. 5, 717 F.3d 431 (5th Cir. 2013)), while the Sixth Circuit treats remuneration as one factor of the common-law agency test rather than a threshold (Bryson v. Middlefield Volunteer Fire Department, Inc., 656 F.3d 348 (6th Cir. 2011)). The Volunteer Protection Act of 1997 shields the individual volunteer from liability for ordinary negligence within the scope of the role and expressly leaves the organization's own liability untouched (42 U.S.C. § 14503(a), (c)); its exceptions for sexual offenses and civil-rights violations (§ 14503(f)) confirm that the statute regulates the volunteer's exposure, not the organization's system. The Fair Labor Standards Act, as administered by the Department of Labor, treats bona fide volunteers for nonprofit organizations as outside employment altogether. State anti-discrimination coverage of volunteers is a patchwork: California prohibits harassment of "an unpaid intern or volunteer" (Cal. Gov. Code § 12940(j)(1)); most states, Washington among them, do not expressly reach volunteers. On the other side of the status line, the handbook doctrine makes an employer's promised procedures enforceable by employees (Thompson v. St. Regis Paper Co., 102 Wn.2d 219, 685 P.2d 1081 (1984)), and reference-immunity statutes typically protect good-faith disclosures about a "former or current employee" and no one else (e.g., RCW 4.24.730). A domestic policy that transplants Principle 1 verbatim therefore fails in one of three ways: it leaves volunteers, board members, and contractors outside the consequence regime; or it manufactures indicia of employment by applying employee procedure to people who are not employees; or it creates enforceable procedural promises the organization did not intend to make.

The design problem is, once again, already solved somewhere in United States law and never applied to the sector as a whole. Several regimes bind by function rather than by status. The HIPAA "workforce" is defined as "employees, volunteers, trainees, and other persons whose conduct, in the performance of work for a covered entity … is under the direct control of such entity, whether or not they are paid" (45 C.F.R. § 160.103). The long-term-care training rule reaches "all new and existing staff; individuals providing services under a contractual arrangement; and volunteers" (42 C.F.R. § 483.95), and the facility reporting duty attaches to each "covered individual" — owner, operator, employee, manager, agent, or contractor (42 U.S.C. § 1320b-25). The amateur-athletics reporting duty attaches to any adult authorized to interact with a minor or amateur athlete (34 U.S.C. § 20341(c)(9)), paid or not. California requires training and fingerprint background checks of "regular volunteers" of youth service organizations (Cal. Bus. & Prof. Code § 18975).

Pennsylvania requires clearances of volunteers with direct contact with children and treats such volunteers as mandated reporters (23 Pa.C.S. §§ 6311, 6344.2). Approximately eighteen states require any person who suspects child abuse to report it, without regard to occupation. None of these instruments asks whether the person is paid.

This is why the crosswalk method, rather than a verbatim transplant, is what makes safe adaptation possible. The method decouples the universal conduct standard from the status-specific consequence pathway and anchors each pathway to the body of law that actually governs it: employment law and the handbook doctrine for employees; the nonprofit corporation statute and the bylaws for directors; contract and flow-down undertakings for contractors and partners; and organizational policy for volunteers, whom statute reaches only in a patchwork. A verbatim copy of the international text cannot perform that allocation, because the text assumes a single employment relationship that domestic law does not supply.

The volunteer channel is also where the portability finding of SCP-1.2 bites hardest. A volunteer dismissed for misconduct leaves no employment record, triggers no licensure consequence, and appears on no registry that travels with the person; the next organization's reference check, if made at all, is answered under statutes that may protect the answering organization only when the person was an employee. The absence of portable disqualification is most acute precisely for the unpaid people who form the largest part of the front-line workforce.

Stated as a bounded proposition: within the scope of the searches conducted for this version — the practitioner literature, the aid-sector accountability literature, and publicly indexed legal scholarship — no prior published analysis maps the employment-based premises of the international PSEA framework against United States law's status-based allocation of protective and procedural duties between volunteers and employees. Adjacent work addresses aid-sector accountability gaps and employment-cycle vetting; it does not address this doctrinal mismatch. That is a bounded, checkable, falsifiable claim. It is also the reason the personnel-status dimension is coded provisionally below.

Provisional G7 coding — single coder; to be confirmed by independent recoding in a later version. Coding is based strictly on the anchors already named in §6. Cells marked "flag" depend on facts not verified for this pass — the reach of the AmeriCorps National Service Criminal History Check over unpaid volunteers (45 C.F.R. §§ 2540.201–.204), the current count of universal-reporter states, and the treatment of employee-facing whistleblower channels — and are carried to the next recoding.

Element	Anchor (as named in §6)	Reaches volunteers / non-employees?	Provisional G7	Basis
SCP-1.1	42 C.F.R. §§ 483.12(b), 483.95	Yes — § 483.95 trains staff, contract personnel, and volunteers	No G7 (within sub-sector)	Function-based within long-term care

Element	Anchor (as named in §6)	Reaches volunteers / non-employees?	Provisional G7	Basis
SCP-1.2	§ 483.12(a)(3)–(4); registries; 45 C.F.R. § 2540.204	Registry and licensure consequences follow employment or license; NSCHC reach over unpaid volunteers unverified	G7 (variance-limited) — flag	No portable bar travels with a volunteer
SCP-2.1	State statutory-rape and position-of-trust law	Yes — criminal law binds any person	No G7	Status-blind on its face
SCP-2.2	State strict-liability rule	Yes — criminal law binds any person	No G7	Status-blind on its face
SCP-3.1	18 U.S.C. § 1591; Title VII quid pro quo	§ 1591 status-blind; the Title VII component reaches employees only	G7 (Title VII component)	Volunteer not an "employee" in most circuits
SCP-3.2	None identified	—	Not coded (N)	—
SCP-4.1	Professional-licensure ethics and discipline	No — the duty attaches to the license	G7	Unlicensed volunteers and staff outside; overlaps G3
SCP-5.1	State mandatory-reporter statutes; 42 U.S.C. § 1320b-25; 34 U.S.C. § 20341	Enumerated-reporter states sort by role or profession; universal-reporter states and § 20341(c)(9) bind by function	G7 (variance-limited) — flag	Universal-reporter count to be confirmed
SCP-5.2	None identified	—	Not coded (N)	—
SCP-5.3	42 C.F.R. § 483.10(j); Form 990 Part VI, Line 13	The grievance mechanism receives complaints about anyone (sub-sector); the Form 990 whistleblower question is employee-facing	G7 (general-application component) — flag	Whistleblower channels are employee-facing by design

Element	Anchor (as named in §6)	Reaches volunteers / non-employees?	Provisional G7	Basis
SCP-6.1	Faragher/Ellerth; § 483.12(b); Cal. Bus. & Prof. Code § 18975	The defense runs to employee claims only; § 483.12 and § 18975 reach volunteers	G7 (general-application component)	The general-application engine is an employee-facing defense
SCP-6.2	42 C.F.R. § 483.95; Form 990, Line 12a	Yes — volunteers expressly trained (sub-sector)	No G7 (within sub-sector)	Function-based within long-term care
SCP-6.3	§§ 483.12(b)(3)–(4), 483.95; fiduciary duty of care	Facility-level duty; the director's duty attaches to the office by definition	No G7	Duty sits with the organization or its board

Read horizontally: G7 appears where the general-application anchor is employment-based, and disappears where the anchor is criminal law or a sub-sector rule drafted by function.

8. What an operational baseline would require

The gap codes convert directly into design requirements. A domestic baseline adequate to the thirteen elements would need to be:

- **Cross-sectoral, not funding-conditioned** (answering G1) — attaching to the service relationship rather than to a grant stream, so that it survives the loss of a federal award.
- **Beneficiary-facing, not employee-facing** (answering G2) — extending conduct standards and reporting channels to program participants, who are the class Title VII structurally cannot reach.
- **Portable across sub-sectors** (answering G3) — usable by a youth program, a shelter, a resettlement agency, and a food bank without re-derivation, since 42 C.F.R. Part 483 demonstrates that the content generalizes.
- **Preventive, not incident-triggered** (answering G4) — requiring systems in advance rather than reports afterward.
- **Specified at the operational level** (answering G5) — stating required policy content, training content and cadence, reporting-channel characteristics, investigation protocol, and monitoring cycle, on the model of § 483.10(j)'s specificity rather than a general exhortation.

- **Organizational, with board and executive accountability** (answering G6) — locating the duty where the international framework locates it, and including a disqualification record that travels with the individual.

- **Function-based, not status-based** (answering G7) — attaching obligations, protections, and consequences to the beneficiary-facing role rather than to employment status, so that volunteers, board members, interns, and contractors are bound identically, on the model of 45 C.F.R. § 160.103 and 42 C.F.R. § 483.95, with the consequence pathway specified separately for each legal relationship — employment law for employees, the corporation statute for directors, contract for contractors and partners, and organizational policy for volunteers.

Voluntary instruments currently occupying this space do not meet the requirements and are excluded from the anchor column for that reason: the CDC's *Preventing Child Sexual Abuse Within Youth-Serving Organizations* guidance is advisory (**G**); the Candid Seals of Transparency measure disclosure rather than protection; proprietary accreditation is fee-based and therefore inaccessible to the 88% of charitable nonprofits operating under $500,000 annually; insurer requirements are contractual, partial, and unpublished; and organization-specific internal standards are neither portable nor externally verifiable. None is a baseline. Each is evidence that the sector is trying to construct one without a common specification.

9. Limitations

- **Single-analyst desk review.** No second coder; inter-rater reliability is not established. Module 2 should be double-coded.

- **Personnel-status coding is provisional.** The G7 code rests on a single-coder pass over the anchors already named in this module. Volunteer-status doctrine under Title VII is circuit-dependent, and state coverage of volunteers and interns is a patchwork subject to frequent amendment; the G7 cells at §7.5 are provisional until independently recoded, and the sector-composition figures cited there should be refreshed at each version.

- **Federal and illustrative state law only.** Tribal law, territorial law, and municipal ordinance are out of scope. State law is cited illustratively; the fifty-state position-of-trust and mandatory-reporter mapping is deferred to a proposed Module 5.

- **Negative findings are bounded.** "No anchor identified within the scope of this review" is a statement about this search, not a proof of non-existence. Search sources are listed at §3.3.

- **Law on the books, not law in action.** Enforcement intensity, inspection frequency, and actual organizational practice are not measured. The prevalence question — how many nonprofits in fact maintain safeguarding policies — requires the separate empirical study described in the companion research agenda.

- **State-count figures are descriptive, not a verified count.** The age-of-consent distribution and the count of states recognizing a mistake-of-age defence are presented descriptively, based on the general pattern reported in secondary sources, rather than as a verified figure. The fifty-state primary-source dataset for both is being built as Module 5.

- **Currency.** All instruments were consulted in July 2026. The crosswalk is versioned so that amendments can be tracked; the Zenodo concept DOI resolves to the current version. The authorities cited at §7.5 were consulted in August 2026.

10. Table of authorities

International instruments - Inter-Agency Standing Committee, *Six Core Principles Relating to Sexual Exploitation and Abuse* (rev. Sept. 2019). - U.N. Secretary-General's Bulletin, *Special measures for protection from sexual exploitation and sexual abuse*, ST/SGB/2003/13 (9 Oct. 2003). - U.N. General Assembly Res. 57/306, *Investigation into sexual exploitation of refugees by aid workers in West Africa* (15 Apr. 2003).

Federal statutes - 18 U.S.C. § 1591 (sex trafficking by force, fraud, or coercion, or of a minor). - 18 U.S.C. § 2243 (sexual abuse of a minor or ward). - 34 U.S.C. § 12291(b)(2) (grantee and subgrantee confidentiality). - 34 U.S.C. § 20341 (reporting requirement; "covered individual"; 24-hour rule). - 36 U.S.C. § 220541 (U.S. Center for SafeSport jurisdiction). - 42 U.S.C. § 1320b-25 (reporting to law enforcement of crimes in federally funded long-term-care facilities). - 42 U.S.C. §§ 14501–14505 (Volunteer Protection Act of 1997). - 42 U.S.C. § 2000e *et seq.* (Title VII); § 2000e(b) (definition of "employer").

Federal regulations - 2 C.F.R. § 200.332(e) (subrecipient monitoring). - 42 C.F.R. § 483.1 (basis and scope). - 42 C.F.R. § 483.10(j) (grievances; grievance official). - 42 C.F.R. § 483.12 (freedom from abuse, neglect, and exploitation). - 42 C.F.R. § 483.95 (training requirements); § 483.95(c) (abuse, neglect, and exploitation training). - 45 C.F.R. § 160.103 (HIPAA definition of "workforce"). - 45 C.F.R. § 2540.204 (National Service Criminal History Check components).

Cases - *Bryson v. Middlefield Volunteer Fire Department, Inc.*, 656 F.3d 348 (6th Cir. 2011). - *Burlington Industries, Inc. v. Ellerth*, 524 U.S. 742 (1998). - *Faragher v. City of Boca Raton*, 524 U.S. 775 (1998). - *Haavistola v. Community Fire Co. of Rising Sun*, 6 F.3d 211 (4th Cir. 1993). - *Harris v. Forklift Systems, Inc.*, 510 U.S. 17 (1993). - *Juino v. Livingston Parish Fire District No. 5*, 717 F.3d 431 (5th Cir. 2013). - *Meritor Savings Bank v. Vinson*, 477 U.S. 57 (1986). - *O'Connor v. Davis*, 126 F.3d 112 (2d Cir. 1997). - *People v. Hernandez*, 61 Cal. 2d 529 (1964). - *Thompson v. St. Regis Paper Co.*, 102 Wn.2d 219, 685 P.2d 1081 (1984).

State law (illustrative) - Colo. Rev. Stat. § 18-3-405.3 (sexual assault on a child by one in a position of trust). - Cal. Bus. & Prof. Code § 18975 (youth service organizations: child abuse prevention policies, training, and background checks; enacted 2021 by AB 506, amended 2022 by AB 2669). - Cal. Gov. Code § 12940(j)(1) (harassment protection for unpaid interns and volunteers). - 23 Pa.C.S. § 6311 (mandated reporters, including certain volunteers with direct contact with children); § 6344.2 (volunteer clearances). - RCW 4.24.670 (liability of volunteers of nonprofit organizations). - RCW 4.24.730 (employer immunity for good-faith disclosures concerning employees).

Agency guidance and other sources - Restatement (Third) of Agency § 7.05 (Am. Law Inst. 2006) (principal's liability for negligent selection, retention, or supervision). - EEOC, *Enforcement Guidance on Harassment in the Workplace* (2024). - IRS Form 990, Part VI, Section B, Lines 12a, 13, 14. - CDC, *Preventing Child Sexual Abuse Within Youth-Serving Organizations: Getting Started on Policies and Procedures* (Saul & Audage, 2007). - National Association of Social Workers, *Code of Ethics*, Standard 1.09. - Nonprofit Risk Management Center, statements on youth-protection standards. - National Council of Nonprofits, *Nonprofit Impact Matters* (Sept. 2019). - AmeriCorps & U.S. Census Bureau, Volunteering and Civic Life in America (2024 release; data for September 2022–September 2023). - U.S. Bureau of Labor Statistics, Nonprofit Sector Research Data (2022 data, released 2024). - Independent Sector, "Volunteers: An Essential Part of the Nonprofit Workforce" (drawing on Urban Institute data). - U.S. Department of Labor, Wage and Hour Division, Fact Sheet #14A: Non-Profit Organizations and the Fair Labor Standards Act (2015). - Child Welfare Information Gateway, Mandatory Reporters of Child Abuse and Neglect (State Statutes series). - U.S. Center for SafeSport, SafeSport Code for the U.S. Olympic and Paralympic Movement (current edition).

Appendix A — Obligation element decomposition

Element	Principle	Obligation type	Anchor strength	Gap codes
SCP-1.1	1	Employment-consequence duty	B (sub-sector)	A · G3 · G5
SCP-1.2	1	Employment-consequence duty	B (sub-sector) / GC	A · G1 · G3 · G6
SCP-2.1	2	Prohibition	B (state, non-uniform)	A · G1 · G4 · G5 · G6
SCP-2.2	2	Evidentiary rule	B (state, non-uniform)	A · G1 · G5 · G6
SCP-3.1	3	Prohibition	B / JM (threshold-limited)	A · G2 · G5 · G6
SCP-3.2	3	Prohibition	N	G2 · G5 · G6
SCP-4.1	4	Prohibition	B (licensed roles only)	A · G3 · G5 · G6
SCP-5.1	5	Reporting duty	B / GC	A · G1 · G3 · G4
SCP-5.2	5	Reporting duty	N	G5 · G6
SCP-5.3	5	Systems duty	B (sub-sector) / GC / DI / JM	A · G1 · G2 · G3 · G5

Element	Principle	Obligation type	Anchor strength	Gap codes
SCP-6.1	6	Systems duty	B (sub-sector) / JM	A · G2 · G3 · G4 · G5
SCP-6.2	6	Systems duty	B (sub-sector) / DI	A · G3 · G5 · G6
SCP-6.3	6	Systems duty	B (sub-sector)	A · G3 · G5

Appendix B — Module roadmap

Module	Source standard	Status
1	IASC Six Core Principles (2019) + ST/SGB/2003/13	**This document**
2	ST/SGB/2003/13 §§ 4 and 6 organizational-systems obligations, in full	Planned
3	Core Humanitarian Standard on Quality and Accountability	Planned
4	Keeping Children Safe International Child Safeguarding Standards	Planned
5	Fifty-state appendix: mandatory-reporter categories, position-of-trust statutes, background-check regimes	Planned